

25STCV32087 25STCV32087

County: los-angeles

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Superior Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

LEVI

ESTATES, LLC, et al.,

vs.

KASSAHUN

NISA, et al.

Case No.:

25STCV32087

Hearing Date: August 19, 2026

Cross-Complainants

in pro per, Kassahun Nigusa's and Iman El Gaddari's, motion for a preliminary injunction is denied.

Cross-Complainants Kassahun Nigusa ("Nigusa")

and Iman El Gaddari ("El Gaddari") (collectively, "Cross-Complainants"), in pro

per, move for a preliminary injunction enjoining Cross-Defendants Levi Estates LLC ("Levi Estates") and Eli Levi ("Levi") (collectively, "Cross-Defendants") from locking out Cross-Complainants, denying Cross-Complainants' right to access the property they hold a valid lease for, and withholding Cross-Complainants' personal property within the premises. (Notice of Motion, pg. 2.)

Background

Cross-Complainants filed their initial Cross-Complaint ("XC") on January 12, 2026, against Cross-Defendants for sixteen causes of action: (1) negligence [against Cross-Defendants]; (2) premises liability [against Cross-Defendants]; (3) negligent infliction of emotional distress [against Cross-Defendants]; (4) breach of implied warranty of habitability [against Cross-Defendants]; (5) violation of Civil Code §1941.1 and Health & Safety Code §17920.3; (6) breach of contract lease and option to purchase [against Cross-Defendants]; (7) breach of the covenant of good faith and fair dealing [against Cross-Defendants]; (8) fraud (intentional misrepresentation, concealment, and promissory fraud including fraudulent UD) [against Cross-Defendants]; (9) constructive fraud/failure to disclose material defects [against Cross-Defendants]; (10) declaratory relief [against Cross-Defendants]; (11) specific performance option to purchase [against Cross-Defendants]; (12) alter ego/piercing the corporate veil [against Cross-Defendant Levi]; (13) punitive damages [against Cross-Defendants]; (14) negligent and intentional infliction of emotional distress [against Cross-Defendants]; (15) injunctive relief mold remediation [against Cross-Defendants]; and (16) specific performance alternative equitable relief [against Cross-Defendants]. (See XC.)

On July 17, 2026, this Court ruled on Cross-Defendants' unopposed demurrer to the XC, sustaining the demurrer with 20 days leave to amend as to the 3rd, 6th, 8th, 9th, 10th, 11th, 14th, 15th, and 16th causes of action and overruling the demurrer as to the 1st, 2nd, 4th, 5th, 7th, 12th, and 13th causes of action.

Plaintiffs filed the operative first amended cross-complaint ("FAXC") on July 17, 2026, against Cross-Defendants for five causes of action: (1) negligence; (2) breach of implied warranty of habitability; (3) breach of contract; (4) quiet title, and (5) negligent misrepresentation.

Cross-Complainants filed the instant motion on July 2, 2026. Cross-Defendant Levi Estates filed its opposition on August 6, 2026. As of the date of this hearing, no opposition has been filed by Cross-Defendant Levi, and no reply has been filed by Cross-Complainants.

Legal Standard

The purpose of a preliminary injunction is to preserve the status quo pending final judgment in the case. (See *Scaringe v. J.C.C. Enterprises, Inc.* (1988) 205 Cal.App.3d 1536.) The status quo has been defined to mean the last actual peaceable, uncontested status which preceded the pending controversy. (*Voorhies v. Greene* (1983) 139 Cal.App.3d 989, 995, quoting *United Railroads v. Superior Court* (1916) 172 Cal. 80, 87.)

In determining whether to issue a preliminary injunction, the trial court considers two factors: (1) the reasonable probability that the plaintiff will prevail on the merits at trial; and (2) a balancing of the “irreparable harm” that the plaintiff is likely to sustain if the injunction is denied compared to the harm that the defendant is likely to suffer if the court grants a preliminary injunction. (C.C.P. §526(a); *14859 Moorpark Homeowner’s Association v. VRT Corp.* (1998) 63 Cal.App.4th 1396, 1402; *Pillsbury, Madison & Sutro v. Schectman* (1997) 55 Cal.App.4th 1279, 1283.)

The Court’s determination is guided by a “mix” of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction. (*Butt v. State of California* (1992) 4 Cal.4th 668, 678.) However, a trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim. (*Id.*)

The court must consider both factors. The two factors are a sliding scale— the stronger the showing of probability of prevailing, the lesser showing is required for irreparable harm. (*Id.*; *The Right Side Coalition v. Los Angeles Unified School District* (2008) 160 Cal.App.4th 336 [reversing denial of preliminary injunction based solely on balancing of hardships without considering probability of prevailing].) The plaintiff must make some showing of each

factor. (Jessen v. Keystone Savings & Loan Association (1983) 142 Cal.App.3d 454, 459.) A court may not issue a preliminary injunction if the plaintiff cannot possibly prevail on the merits even if a strong showing of irreparable harm has been made. (Butt, 4 Cal.4th at pgs. 677-678.)

On the first factor, a preliminary injunction may not issue unless the judge is persuaded that it is "reasonably probable" that the plaintiff will prevail on the merits. (San Francisco Newspaper Printing Co. v. Superior Court (1985) 170 Cal.App.3d 438, 442.) The judge does not determine the merits of the action or decide that the plaintiff necessarily will prevail. The judge only determines whether there is a reasonable probability that the plaintiff will prevail. (Youngblood v. Wilcox (1989) 207 Cal.App.3d 1368, 1372.)

For the second factor, "irreparable harm" means that the defendant's act constitutes an actual or threatened injury to the personal or property rights of the plaintiff that cannot be compensated by a damages award. (Brownfield v. Daniel Freeman Marina Hospital (1989) 208 Cal.App.3d 405, 410.) A plaintiff is not required to wait until suffering actual harm; threatened harm is enough. (Southern Christian Leadership Conference v. Al Malaikah Auditorium Co. (1991) 230 Cal.App.3d 207, 223.)

The issue of irreparable harm is closely related to the issue of damages as an adequate remedy at law. Monetary loss will not constitute irreparable harm unless the plaintiff also shows that the defendant is insolvent or unable to pay damages. (Friedman v Friedman (1993) 20 Cal.App.4th 876, 890.) While both residential and commercial real property are considered unique for purposes of irreparable harm (see Civ. Code §3387), damages may adequately compensate property owned for investment property which has an established value, and the foreclosing entity is solvent. (Jessen, 142 Cal.App.3d at pg. 458.) Where the owner intends to use the investment property and not simply sell it, money damages may not suffice, and irreparable harm may justify injunctive relief. (Id.)

The showing must demonstrate the specific harm claimed; mere allegations of irreparable injury are insufficient. (Leach v. City of San Marcos (1989) 213 Cal.App.3d 648, 661 ["A mere allegation

that such injury will result is not sufficient".]) Conclusory statements, lay opinion, and attorney declarations will not suffice.

The irreparable harm must be imminent; a mere possibility or fear of harm is insufficient. (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.) The court's ruling on a preliminary injunction is not an adjudication of the merits, is not a trial, and does not require a statement of decision. (*Cohen v. Board of Supervisors*, (1985) 40 Cal.3d 277, 286; *People v. Landlords Professional Services, Inc.*, (1986) 178 Cal.App.3d 68, 70-71.) The Court is not required to state its reasons for granting or denying a preliminary injunction; a cursory statement is sufficient. (*City of Los Altos v. Barnes* (1992) 3 Cal.App.4th 1193, 1198.)

Discussion

Cross-Complainants

fail to demonstrate they have a reasonable likelihood of success on the merits of their claims. A final judgment entered by one department of the Superior Court may not be enjoined or otherwise rendered ineffective by another department of the same court. (*Ford v. Superior Court* (1986) 188 Cal.App.3d 737, 741 [holding one department of the superior court may not restrain or interfere with the judicial acts of another department and hence the appropriate remedy is appellate review].) The California Supreme Court stated in *Williams v. Superior Court*, that "it is beyond the jurisdictional authority of another department of the same court to interfere with the exercise of the power of the department to which the proceeding has been so assigned." (*Williams v. Superior Court* (1939) 14 Cal.2d 656, 662; see also *People v. Gonzalez* (1996) 12 Cal.4th 804, 824-825 [recognizing the long-established rule that one department of the superior court generally may not review or interfere with the judicial acts of another department].)

The Court takes judicial notice that an unlawful detainer action concerning 3341 Country Club Drive, Los Angeles, CA 90019 ("Subject Property") proceeded to a jury trial before Department 506 in LASC Case No. 26STCV06893 ("UD Case"). This cause came on regularly for trial before Department 506 on June 18, 2026, and Judgment was thereafter entered in favor of Cross-Defendant Levi Estates (Plaintiff in the UD Case), awarding possession of the Subject Property and monetary relief. (7/6/26 Amended Judgment in UD Case.) On June 24, 2026, Cross-Complainants thereafter filed a notice of appeal from that Judgment. (6/24/26 Notice of Appeal in UD Case.) Cross-Complainants also sought an order

staying enforcement of the unlawful detainer judgment and writ of possession pending appeal, which the judge in Department 506 denied. (6/25/26 Ex Parte Application Denial in UD Case.)

This Court cannot sit as a court of review over Department 506's rulings in the UD Case.

(In re Alberto (2002) 102 Cal.App.4th 421, 427-428 ["The Superior Court of Los Angeles County, though comprised of a number of judges, is a single court and one member of that court cannot sit in review on the actions of another member of that same court."], quoting People v. Woodland (1982) 131 Cal.App.3d 107, 111.) The narrow exceptions to this rule, namely, the unavailability of the first judge; materially changed facts or law; or a showing that the prior ruling resulted from inadvertence, mistake, or fraud, have no application here, and "[m]ere disagreement" with the first judge's ruling "is not enough to overturn" Department 506's rulings in the UD Case. (In re Marriage of Oliverrez (2015) 238 Cal.App.4th 1242, 1249.) Department 506 remains available. Further, Cross-Complainants' instant motion identifies no changed facts or law. Cross-Complainants merely disagree with the rulings made in the UD Case.

Whether Department 506 correctly ruled upon the defenses presented at trial in the UD Case is a matter committed to the unlawful detainer proceedings and the appellate process. It is not an issue properly decided by a different department of the Superior Court through a motion for preliminary injunction filed in a separate civil action.

Because Cross-Complainants seek relief that would interfere with enforcement of a final judgment entered in another action, there is no likelihood of success in the instant case, and the requested injunction is denied.

Conclusion

Cross-Complainants' motion for a preliminary injunction is denied.

Moving Party to give notice.

Dated:

August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court